

INTRODUCTION

A special population may be eligible for Child Development and Care (CDC) Disaster Assistance for 40 hours every two weeks. Income eligibility and need requirements are waived for this group.

The CDC Disaster Assistance eligibility category should **only** be selected after a county has received official notification from the Michigan Department of Lifelong Education, Advancement, and Potential (MiLEAP) that this eligibility category is approved to be used.

Follow standard policy from all applicable Bridges Policy Manuals for CDC, including Bridges Administrative Manuals (BAM) and Bridges Eligibility Manuals (BEM), with the following exceptions related to CDC Disaster Assistance.

Special Population

This special population includes each child who satisfies all of the following criteria:

- The child is age eligible at the time of application or redetermination.
- The child lived in the Affected Area and was impacted by the disaster for which a State or Federal Emergency was declared, during the time-period of the emergency declaration.
- The child currently resides in the Affected Area.

CDC Disaster Assistance Policy Exceptions

Request CDC Disaster Assistance policy exceptions in case specific situations not covered by published policy. In addition to CDC policy exceptions defined in BEM 100, CDC Disaster Assistance policy exception decisions shall be granted when the parent/substitute parent (P/SP) valid CDC need exceeds 40 hours every two weeks.

The CDC office at MiLEAP issues CDC Disaster Assistance policy exception decisions on form DHS-1785, Policy Decision. A policy decision issued on the DHS-1785 is official policy, but only for the case specified on the form.

**Need Exceeds 40
Hours**

If the P/SP indicates a need for more than 40 hours of care every two weeks, inform the P/SP that upon receipt of supporting documentation a policy exception will be requested. If the P/SP can immediately produce supporting documentation (for example, check stub(s), work or school schedule, etc.), request the policy exception before certifying the eligibility results. If the P/SP is unable to provide supporting documentation immediately, certify the 40 hours of eligibility, and request a CDC Disaster Assistance policy exception upon receipt of supporting documentation.

**Exception
Requests**

Any staff member may initiate a request for a CDC Disaster Assistance policy exception, but it must be in writing and go through regular administrative channels. Send requests to Policy-CDC@michigan.gov. Upload confidential information to the electronic case file (ECF) and include remarks in the exception request identifying which documents support the greater need hours. Do not send confidential information or Personally Identifiable Information (PII) by email.

CDC Disaster Assistance policy exception requests must include:

- Case name (group member needing exception).
- Case number.
- Name and phone number of local office contact person.
- A detailed reason for the exception request.
- Copies of all supporting documentation (if the information is confidential or is already in the ECF, note in the email).

If further information is necessary, a response will be sent by email with the specific request. If complete information is received, the decision will be sent by email. Document the decision in Bridges Case Comments and upload the DHS-1785 to the ECF.

If more than 40 hours of need every two weeks is approved through a policy decision, enter all need hours in a single time block under the CDC Disaster Assistance need reason, regardless of the need(s) for which the exception was approved.

Example: The P/SP requests CDC Disaster Assistance, indicates a total need greater than 40 hours for a valid BEM 703 CDC need

reason, and provides supporting documentation of an activity lasting 35 hours every two weeks. Upon receiving a completed policy exception approval, enter 45 hours under the CDC Disaster Assistance need reason, which would result in 60 authorized hours.

Note: If a client only requests CDC Disaster Assistance and has no other need, authorize 40 hours. The 40 hours of CDC Disaster Assistance includes all needs considered for a parent (for example, travel time) and no calculation is done.

RIGHTS AND RESPONSIBILITIES

Clients are not required to report a change in income when income exceeds the CDC Income Eligibility Scale in RFT 270.

Application Filing, Registration and Processing

In order to request CDC Disaster Assistance a client must submit a valid application and a Child Development and Care (CDC) Disaster Assistance Certification form.

A P/SP with an open CDC case may submit the CDC Disaster Assistance Certification form, rather than submitting a new application. This form is an official request to have currently authorized children, who are potentially eligible for CDC Disaster Assistance, changed to this category. If currently authorized hours are more than 40 hours every two weeks, follow the Policy Exceptions instruction in this policy item.

If the P/SP submits information about children who are not eligible for CDC Disaster Assistance, and indicates a desire for CDC for those children, utilize the application as a filing form and provide or send a MDHHS-1171, Assistance Application, and the MDHHS 1171-CDC program specific supplement form. Follow normal application filing and registration procedures.

If the P/SP has an open CDC EDG, that P/SP may submit one of the acceptable applications for the applicable child(ren). In these instances, the child(ren)'s only need reason should be listed as CDC Disaster Assistance. If this action causes the authorized hours to be reduced, review Hours Reduced in 12-month Continuous Eligibility in this item.

Interview

An interview is required for all new CDC requests. Make an initial attempt to interview the applicant. If contact fails, schedule an interview and send the applicant notification by mail. If the interview is missed, notify the applicant by mail of the need to respond and complete an interview by the 30th calendar day of the standard of promptness.

Note: Clients who have ongoing CDC cases are not required to participate in an interview when they apply for CDC Disaster Assistance.

Application Location

An application must be received and processed in a county that is included in the State or Federally Declared Emergency.

Standard of Promptness

For CDC Disaster Assistance, it is recommended that the Eligibility Specialist (ES) certify program approval of the application within 10 days. Allow the client every opportunity to return verifications and meet the interview requirement. Do not deny eligibility until the 30th day of the standard of promptness.

CASE ACTIONS

Clients are not required to report a change in income when income exceeds the CDC Income Eligibility Scale in RFT 270.

When adding a member to the group, the waiver of income and need still applies to those children who are receiving CDC Disaster Assistance.

Valid CDC EDG Closure Reasons for CDC Disaster Assistance include:

- Client requests closure.
- Incarceration.
- Loss of Michigan residency.
- Only child leaves the home.
- Assets exceed one million dollars.

When a family changes the current address to one outside the Affected Area, CDC Disaster Assistance will end at redetermination.

CDC GROUP COMPOSITION

Because the income and need of the group are waived for CDC Disaster Assistance, the only required group member(s) include the child(ren) receiving CDC Disaster Assistance. When additional child(ren) are applied for outside of CDC Disaster Assistance, the CDC Group Composition includes all members listed in BEM 205 and does not exclude those children receiving the CDC Disaster Assistance.

Accept all provided information from any acceptable application for CDC Disaster Assistance. If historical information is available from previous applications or in Bridges, confirm the historical information if possible. Do not request more than the required information.

AGE

Follow standard policy for age limits for the CDC Disaster Assistance need reason.

CHILD SUPPORT

Do not deny CDC Disaster Assistance eligibility for a child solely because the P/SP is in non-cooperation with the Office of Child Support.

INCOME

Income is not a reporting requirement for the CDC Disaster Assistance need reason. If income is or has been reported for any reason, waive the income eligibility. Do not deny CDC Disaster Assistance eligibility for a child solely because the group's income exceeds the *CDC Income Eligibility Scale* in RFT 270.

CDC VERIFICATION

- Do not request verification of a valid need reason.
- Do not request verification of income.

**CDC PROGRAM
REQUIREMENTS**

Eligibility for 40 hours of CDC Disaster Assistance is not dependent on any P/SP being unavailable due to a valid need reason.

When a P/SP applies for CDC Disaster Assistance and certifies that a child was impacted by the approved State or Federal disaster, meets the definition referenced in Special Population, and is determined eligible, authorize 40 hours with a need reason of CDC Disaster Assistance.

Once eligibility has been determined, the child(ren) will remain eligible for the entire 12-month certification period with few exceptions; see Closure Reasons in this item.

Affected Area

The CDC Disaster Assistance Affected Area will be defined and communicated if this eligibility category is activated.

**Multiple
Eligibility/Need
Reasons**

The need reason for all children in which the P/SP has made a request for CDC Disaster Assistance, has certified that the child was affected according to the requirements listed above, and the child currently resides in the Affected Area, should be marked as CDC Disaster Assistance. For those individuals who provide supporting documentation for more hours of need, do not enter additional need reasons. Instead, submit a CDC Disaster Assistance Policy Exception Request to Policy-CDC@michigan.gov with the appropriate information pertaining to additional need hours.

**Family
Contribution**

Because there is no income determination for this eligibility group, waive the Family Contribution (FC) listed in RFT 270 (listed as \$0). This waiver is due to impact by a State or Federal disaster, confirmed by each applicant's self-attestation.

**CDC NEED
CALCULATION****Hours Reduced in
12-month
Continuous
Eligibility**

When a child has active CDC, authorized hours cannot be lowered during 12-month Continuous Eligibility. Request a CDC Disaster Assistance Policy Exception for any child whose hours would be reduced by changing to the CDC Disaster Assistance need reason during 12-month Continuous Eligibility. Do not request new supporting documentation.

**Need in Two-
Parent Household**

When requesting a policy exception for additional need hours, consider the need calculation for a two-parent household according to BEM 710. If the parent with the fewest hours has a need greater than 40 hours, submit a CDC Disaster Assistance Policy Exception as instructed in this policy item.

**Documenting
the Need
Determination**

When a CDC Disaster Assistance policy exception is approved, upload the DHS-1785, Policy Decision, and document the approval in Bridges including the following information:

- Calculations used to arrive at the need determination.
- The source of the information used in the need determination.
- The date of the policy exception approval.

**CDC Disaster
Assistance Policy
Questions
Clarification**

Direct questions or clarification requests to the policy mailbox at Policy-CDC@michigan.gov.

REDETERMINATION

At redetermination follow standard policy found in BAM 210, (unless otherwise stated in this policy item), including the requirement that a client submit a MDHHS-1010, Redetermination, or other review document.

At redetermination if the CDC Disaster Assistance eligible child fulfills the following two conditions, the child will remain eligible for 40 hours of CDC Disaster Assistance until next redetermination date:

1. The child is age eligible.
2. The child resides in the Affected Area.

Policy Exception Requests at Redetermination

At redetermination, if more than 40 hours of CDC are requested:

- A new policy decision **is not** required if the current P/SP(s) have an approved policy decision for the same or a greater number of hours. Document the hour calculation and proof provided.
- A new policy decision **is** required if the current P/SP(s) does not have an approved policy decision, or if the hours requested are greater than previously approved.

Follow the policy exception guidance in this policy item to request a new policy decision.

LEGAL BASE

The Child Care and Development Block Grant (CCDBG) Act (42 USC § 9858 et seq.), as amended by the CCDBG Act of 2014 (Pub. L. 113-186).
45 CFR Parts 98 and 99.
Social Security Act, as amended 2016.